CLARK *v.* SWEENEY

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 25–52. Decided November 24, 2025

A Maryland jury found Jeremiah Sweeney guilty of second-degree murder and other crimes. After those convictions were affirmed on direct appeal, Sweeney sought postconviction relief in state court. Sweeney argued, among other things, that his trial counsel was ineffective under *Strickland* v. *Washington*, 466 U. S. 668, 686, for failing to *voir dire* the jury to ensure that one juror's unauthorized crime-scene visit had not tainted the other jurors. The state court denied relief after a hearing. Sweeney then petitioned for a writ of habeas corpus under 28 U. S. C. § 2254 in Federal District Court, again arguing that his trial counsel was ineffective for not seeking to *voir dire* the entire jury. The District Court denied relief, concluding that the state court's application of *Strickland* was not objectively unreasonable. The Fourth Circuit reversed in an unpublished opinion and ordered a new trial. Instead of addressing the ineffective-assistance claim that Sweeney asserted, the Fourth Circuit held that Sweeney's trial had been marred by a "combination of extraordinary failures from juror to judge to attorney" that deprived Sweeney of his right to be confronted with the witnesses against him and to be tried by an impartial jury. App. to Pet. for Cert. 22a, 29a.

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Held: The Fourth Circuit transgressed the party-presentation principle by granting relief on a claim that Sweeney never asserted and that the State never had a chance to address. "In our adversarial system of adjudication, we follow the principle of party presentation." *United States* v. *Sineneng-Smith*, 590 U. S. 371, 375. The parties " 'frame the issues for decision,' " while the court serves as " 'neutral arbiter of matters the parties present.' " *Ibid.* (quoting *Greenlaw* v. *United States*, 554 U. S. 237, 243). The Fourth Circuit's "radical transformation" of Sweeney's simple ineffective-assistance claim "departed so drastically from the principle of party presentation as to constitute an abuse of discretion." *Sineneng-Smith*, 590 U. S., at 380, 375. On remand, the Fourth Circuit should analyze the ineffective-assistance claim that Sweeney asserted. See *Dunn* v. *Reeves*, 594 U. S. 731, 739 (*per curiam*).

Certiorari granted; reversed and remanded.